

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

ERIC HARRIS and ASHA HARRIS,

Index No.

Plaintiffs,

Plaintiffs designate New York
County as the place of trial.

-against-

SUMMONS

THE CITY OF NEW YORK,

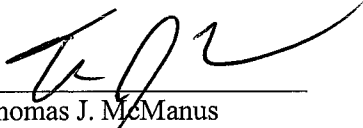
The basis of venue is: County of
occurrence

Defendant.

Plaintiffs reside at:
1787 Madison Avenue
New York, NY 10035

County of NEW YORK

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiffs' attorneys within twenty days after the service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
September 30, 2014SULLIVAN PAPAIN BLOCK
McGRATH & CANNAVO PC.By: 

Thomas J. McManus

Attorneys for Plaintiffs

Office and P.O. Address

120 Broadway

New York, New York 10271

(212) 732-9000

Defendants addresses:**City of New York— 100 Church Street, New York, New York**

FILED WITH THE CLERK OF THE COURT ON _____

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ERIC HARRIS and ASHA HARRIS,

Plaintiffs, Index No.

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,

Filed with Clerk of the
Court on:

Defendant. _____

-----X

Plaintiffs, ERIC HARRIS and ASHA HARRIS, by their attorneys, Sullivan Papain Block McGrath & Cannavo, P.C., complaining of the defendant, THE CITY OF NEW YORK, upon information and belief and at all times hereinafter mentioned, alleges:

FIRST CAUSE OF ACTION FOR NEGLIGENCE

1. That defendant THE CITY OF NEW YORK (hereinafter "CITY") is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

2. That prior to commencement of this action, on September 4, 2013, a Notice of Claim was duly served on the defendant herein, specifically on the City of New York Law Department, Office of Corporation Counsel, setting forth the time when, the place where, and the circumstances under which the incident, which is the subject of this complaint, occurred.

3. That prior to commencement of this action, on September 5, 2013, a Notice of Claim was duly served on the defendant herein, specifically on the City of New York and the Comptrollers Office, setting forth the time when, the place where, and the circumstances under which the incident, which is the subject of this complaint, occurred.

4. That prior to commencement of this action, on May 6, 2014, the Honorable Kathryn Freed issued an Order permitting the undersigned to serve an Amended Notice of Claim, a copy of which was attached to the motion.

5. That prior to commencement of this action, on September 18, 2014, an Amended Notice of Claim was duly served on the defendant herein, specifically on the City of New York Law Department, and the Comptrollers Office, setting forth the time when, the place where, and the circumstances under which the incident, which is the subject of this complaint, occurred.

6. The aforesaid claims were originally presented within ninety (90) days after the causes of action alleged herein accrued, and more than thirty (30) days have elapsed since such presentation and the defendant has wholly failed to adjust same or make payment thereon.

7. On September 24, 2014, plaintiffs appeared for a hearing pursuant to General Municipal Law Sec. 50-H.

8. This action is being commenced within one year and ninety days from the date of the occurrence.

9. That on August 4, 2013, plaintiff ERIC HARRIS was operating a motor vehicle in the vicinity of 136th Street and Frederick Douglass Boulevard, New York, New York.

10. That on August 4, 2013, while operating his motor vehicle on the public roadway, plaintiff, ERIC HARRIS, was stopped without just cause.

11. That at the aforementioned date, New York City Police Officers, while acting under the color of law and the color of their authority as New York City police officers, wrongfully, unlawfully and without provocation or justification pulled over plaintiff, ERIC HARRIS.

12. That at the aforementioned date, New York City Police Officers, while acting under the color of law and the color of their authority as New York City Police Officers, wrongfully, unlawfully and without provocation or justification drew their firearms on plaintiff, ERIC HARRIS.

13. That at the aforementioned date, New York City Police Officers, while acting under the color of law and the color of their authority as New York City police officers, wrongfully, unlawfully and without provocation or justification shouted derogatory and racially offensive remarks at plaintiff, ERIC HARRIS.

14. That at the aforementioned date, New York City Police Officers, while acting under the color of law and the color of their authority as New York City Police Officers, wrongfully, unlawfully and without provocation or justification pressed the gun barrel against the head of plaintiff, ERIC HARRIS.

15. That at the aforementioned date, New York City Police Officers, while acting under the color of law and the color of their authority as New York City Police Officers, wrongfully, unlawfully and without provocation or justification forcibly pulled plaintiff, ERIC HARRIS from his vehicle and arrested him.

16. That at the aforementioned date, New York City Police Officers, while acting under the color of law and the color of their authority as New York City Police Officers, wrongfully, unlawfully and without provocation or justification pushed, pulled, restrained, used excessive force, and shoved plaintiff ERIC HARRIS.

17. That the said occurrence was caused solely by reason of the negligence, carelessness, and recklessness of the defendant.

18. That as a result of the said occurrence, plaintiff ERIC HARRIS sustained serious personal injuries, including but not limited to psychological trauma, physical and emotional pain, and conscious pain and suffering.

19. That by reason of the negligence, carelessness, and recklessness of the defendant; plaintiff, ERIC HARRIS, claims damages against the defendant in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

SECOND CAUSE OF ACTION FOR ASSAULT

20. That plaintiff ERIC HARRIS repeats and reiterates each and every allegation set forth in paragraphs "1" through "19" as if set forth more fully at length herein.

21. That on August 4, 2013, while operating a motor vehicle in the vicinity of 136th Street and Frederick Douglass Boulevard, New York, New York, while acting under the color of law and the color of their authority as New York City Police Officers, a police officer did physically assault plaintiff ERIC HARRIS.

22. That as a result of said assault, plaintiff ERIC HARRIS was injured.

23. That as a result of said assault, plaintiff ERIC HARRIS was seriously injured.

24. That by reason of the foregoing assault, plaintiff ERIC HARRIS claims damages against the defendant in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

THIRD CAUSE OF ACTION FOR BATTERY

25. That plaintiff ERIC HARRIS repeats and reiterates each and every allegation set forth in paragraphs "1" through "24" above as if set forth more fully at length herein.

26. That on August 4, 2013, while operating a motor vehicle in the vicinity of 136th Street and Frederick Douglass Boulevard, New York, New York, while acting under the color of law and the color of their authority as New York City Police Officers, a Police Officer battered plaintiff ERIC HARRIS.

27. That as a result of said battery, plaintiff ERIC HARRIS was injured.

28. That as a result of said battery, plaintiff ERIC HARRIS was seriously injured.

29. That by reason of the foregoing battery, plaintiff ERIC HARRIS claims damages against the defendant in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

FOURTH CAUSE OF ACTION PURSUANT TO 42 USC § 1983

30. That plaintiff ERIC HARRIS repeats and reiterates each and every allegation in paragraphs "1" through "29" as if set forth more fully at length herein.

31. That by reason of the foregoing, the defendant, under the color of State law, subjected plaintiff ERIC HARRIS to the

deprivation of his rights, privileges and/or immunities secured by the Constitution of the United States.

32. That by reason of the foregoing deprivation of constitutional rights, defendant is liable to the plaintiff under Title 42 of the United States Code, including, but not limited to, Section 1983 thereof.

33. As a result of said deprivation of constitutional rights, privileges and immunities, plaintiff ERIC HARRIS was injured.

34. As a result of said deprivation of constitutional rights, privileges and immunities, plaintiff ERIC HARRIS was seriously injured.

35. That by reason of the deprivation of constitutional rights, privileges and immunities, plaintiff ERIC HARRIS claims damages against the defendant in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

**FIFTH CAUSE OF ACTION FOR
NEGLIGENT HIRING, SUPERVISION, AND RETENTION**

36. That plaintiff ERIC HARRIS repeats and reiterates each and every allegation in paragraphs "1" through "35" as if set forth more fully at length herein.

37. That the aforementioned occurrence took place as a result of the defendant, THE CITY OF NEW YORK's, negligent

hiring, supervision, and retention of its employees, agents, servants and/or independent contractors.

38. That the aforementioned occurrence took place as a result of the defendant's negligent hiring, supervision, and retention of its employees, agents, servants and/or independent contractors.

39. That by reason of the negligent hiring, supervision, and retention, plaintiffs claim damages against the defendant in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

**SIXTH CAUSE OF ACTION FOR
UNLAWFUL ARREST, DETAINMENT, AND CONFINEMENT**

40. That plaintiff ERIC HARRIS repeats and reiterates each and every allegation set forth in paragraphs "1" through "39" above as if set forth more fully at length herein.

41. That on August 4, 2013, while operating a motor vehicle in the vicinity of 136th Street and Frederick Douglass Boulevard, New York, New York, while acting under the color of law and the color of their authority as New York City Police Officers, a Police Officer unlawfully arrested, detained, and confined plaintiff ERIC HARRIS.

42. That as a result of said arrest, detainment, and confinement, plaintiff ERIC HARRIS was injured.

43. That as a result of said arrest, detainment, and confinement, plaintiff ERIC HARRIS was seriously injured.

44. That by reason of the foregoing arrest, detainment, and confinement, plaintiff ERIC HARRIS claims damages against the defendants in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

SEVENTH CAUSE OF ACTION

45. Plaintiff, ASHA HARRIS repeats and reiterates each and every allegation set forth in paragraphs "1" through "44" above as if set forth more fully at length herein.

46. Plaintiff, ASHA HARRIS, was and is the lawful spouse of plaintiff, ERIC HARRIS, and, as such, was entitled to his services, society, consortium, and companionship.

47. As a result of the foregoing, plaintiff, ASHA HARRIS, has been deprived of the services, society, consortium, and companionship of her spouse, plaintiff, ERIC HARRIS.

48. By reason of the foregoing, plaintiff, ASHA HARRIS, has been damaged in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter.

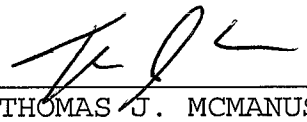
WHEREFORE, plaintiff ERIC HARRIS demands judgment against defendant in Causes of Action One, Two, Three, Four, Five and Six and plaintiff ASHA HARRIS demands judgment against defendant

in Cause of Action Seven in amounts which exceed the jurisdictional limits of all the lower Courts in the State of New York, which would otherwise have jurisdiction of this matter, together with costs, interests and disbursements.

Dated: New York, New York
September 30, 2014

Yours, etc.,

SULLIVAN PAPAIN BLOCK
MCGRATH & CANNAVO P.C.

By: 
THOMAS J. MCMANUS
Attorneys for Plaintiff
120 Broadway
New York, New York 10271
(212) 732-9000

VERIFICATION

I, Thomas J. McManus, an attorney admitted to practice in the Courts of New York State, state under penalty of perjury that I am one of the attorneys for the plaintiffs in the within action. I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters I believe to be true. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigation conducted by my office.

Dated: New York, New York
September 30, 2014



Thomas J. McManus